



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR CLEARWATER COUNTY

SETTLEMENT AGREEMENT AND RELEASE OF CLAIMS

Ends a dispute by agreement instead of trial

PLAINTIFF 	CASE NUMBER (UCN)
VS.	DEFENDANT
 Full name of party	 Format: 26-CF-000123 (YY - TYPE - NUMBER) DIVISION JUDGE / HEARING OFFICER CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims

HOW TO USE THIS FORM

Once both sides sign this, the case is over and the releasing party can never bring the same claim again. Read the release language carefully. If a government entity is paying, the agreement usually must be approved by the department head or county attorney.

PARTIES TO THE AGREEMENT

RELEASING PARTY (RECEIVES PAYMENT) 	RELEASED PARTY (PAYS) 	
ADDITIONAL RELEASED PARTIES 	CASE NUMBER 	DATE OF AGREEMENT MM/DD/YY

CONSIDERATION

TOTAL SETTLEMENT AMOUNT \$	PAYMENT METHOD 	DUE DATE MM/DD/YY	INSTALLMENTS
NON-MONETARY TERMS 	ATTORNEY FEES INCLUDED 	COSTS BORNE BY 	

RELEASE

In exchange for the consideration described above, the releasing party fully and forever releases and discharges the released party, and its officers, employees, agents, and departments, from any and all claims, demands, damages, actions, and causes of action of every kind arising out of the incident described in this case, whether now known or unknown.

TERMS AGREED TO

☐ The case will be dismissed with prejudice	☐ Each side bears its own attorney fees and costs
☐ The released party admits no liability or wrongdoing	☐ The terms of this agreement are confidential
☐ Neither party will disparage the other publicly or	☐ No contact between the parties going forward
☐ Property will be returned as described below	☐ Any related Internal Affairs complaint will be withdrawn
☐ Any related criminal charge will be addressed separately	☐ This agreement resolves all pending claims between the parties

ADDITIONAL TERMS AND CONDITIONS

PROPERTY TO BE RETURNED, APOLOGIES, POLICY CHANGES, DEADLINES

ACKNOWLEDGMENT

Each party states that they have read this agreement, understand it, have had the opportunity to consult counsel, and are signing it voluntarily. Each party understands the release is permanent and cannot be undone because of a later change of mind or a later-discovered injury.

SIGNATURES

RELEASING PARTY Signature PRINTED NAME DATE	RELEASED PARTY OR REPRESENTATIVE Signature PRINTED NAME DATE
COUNSEL FOR RELEASING PARTY Bar number PRINTED NAME DATE	COUNSEL FOR RELEASED PARTY Bar number PRINTED NAME DATE

GOVERNMENT APPROVAL (REQUIRED IF A PUBLIC ENTITY IS PAYING)

APPROVING OFFICIAL	TITLE	BUDGET LINE / FUND	APPROVAL DATE
			MM/DD/YY
COUNTY ATTORNEY OR DEPARTMENT HEAD Approval of public funds PRINTED NAME DATE			